Commentary
September 27, 2024

Belarusian Prisoner Releases Hold Potential to Facilitate Belarus-West Relations

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Originally published by the Eurasia Daily Monitor

Summary

There is little evidence that harsh economic sanctions lead to the release of prisoners, and if, instead of increasing diplomacy, the West continues to abide by this argument, little progress will be made in Belarusian-Western relations.

Belarusian President Alyaksandr Lukashenka signed a decree pardoning 37 people in prison on September 16, the eve of the recently established National Unity Day. Belarusian officials explained the move as "another humane gesture on the part of the state" toward those "who had made a mistake" and stressed that they had all filed petitions for pardon. Since early July, at least 115 people whom Western governments classify as political prisoners have been released from Belarusian prisons. This noteworthy development raises important questions about the reasons for such decisions and their prospects to pave the way for an opening in Belarus's relations with the West. In the West's actions toward Belarus, it must consider how Minsk will look at the specifics of its sanctions and diplomatic interactions with the country.

The United States and EU member states have highlighted the issue of political prisoners as a central problem in their relations with the Lukashenka government since late 2020. Additionally, they have cited the issue of political prisoners as one of the main justifications for introducing multiple sanctions packages against Belarus. Today, the European Union considers over 1,300 Belarusian inmates as having been convicted on political grounds. Washington adheres to similar estimations. Minsk, on its part, insists that the country has no political prisoners and that all the individuals in question were sentenced for extremist activities.

In early July, mid-August, and mid-September of this year, Lukashenka made three separate decisions to pardon prisoners. This series of prisoner releases has attracted significant attention in Belarus and the West, as Minsk has not made similar decisions in the last four years. Numerous speculations followed about what exactly caused them to happen. Leaders of the Belarusian opposition in exile, who have long lobbied for harsh economic sanctions against the country, are predictably making the case that Lukashenka greenlit the pardons under the burden of the Western sanctions. Building on this premise, they now call for even more restrictive measures against Minsk following the releases and argue that only maximum economic and diplomatic pressure will facilitate the freeing of all the remaining prisoners.

> There is simply no evidence, however, to support the claim that harsh economic sanctions lead to the release of political prisoners, as it appears to be a logical fallacy.

The European Union alone has already introduced at least nine sanctions packages against Belarus since late 2020. Additionally, Poland, Lithuania, and Latvia—three EU member states bordering Belarus—have adopted a series of individual restrictions that even exceed the requirements of the EU-level sanctions and have effectively amounted to a logistical semi-blockade of Belarus. If all the previous sanctioning decisions failed to facilitate prisoner releases and other political concessions that the West seeks from Minsk, it is unknown how the ninth EU package could miraculously succeed.

This latest package established on June 29 mirrors some of the restrictive measures already in place against Russia. Several segments of the Belarusian economy undoubtedly feel its painful effects, but the earlier restrictive measures were far more damaging, and they still did not change Minsk's policy or behavior. They only incentivized Belarus to start reorienting its economy away from the West. Moreover, if, for some reason, the Belarusian government was eager to avoid this latest package, it would have been logical to take preventive measures. In that case, Minsk would have started prisoner releases before its adoption. Minsk had plenty of time for that—almost eleven months separated this and the previous, eighth, package.

Moreover, the June 29 package aims to "address the issue of circumvention stemming from the high degree of integration existing between the Russian and Belarusian economies". Hence, the additional sanctions are not even directly related to the domestic situation in Belarus, and, therefore, releasing prisoners would not even hypothetically be enough to forestall or lift it.

It appears obvious that no direct causal link exists between the latest sanctions and Minsk's decision to start releasing individuals whom the West qualifies as political prisoners. Similar developments have already taken place in Belarus, for instance, the release of prisoners in 2008–2009 and 2014–2015. Based on that previous experience, some broader calculations likely stand behind the most recent releases.

> The intricacies of Belarus's geopolitical position and its implications for the domestic political scene appear to result in such recurring patterns of decisions.

In the past, the Lukashenka government took similar steps in the run-up to presidential elections to ease tensions with the West and deprive domestic political opponents of the political prisoner argument. Besides preparing for an upcoming presidential campaign, such moves also signaled Minsk's willingness to diversify its foreign diplomatic and economic relations. Today's situation is difficult to compare to past Belarusian pre-election cycles, as the war in Ukraine and the semi-blockade of Belarus have fundamentally changed the realities on the ground and made a return to usual political cycles impossible. Nonetheless, the same rationale seems to be driving the decision-making in Minsk.

Whether these developments can lead to an opening in Belarus-West relations remains to be seen. Minsk appears interested in exploring the possibility of this opening. It will continue, however, to stick to its long-accentuated position of no unilateral concessions toward the West. As a senior Belarusian government official stated, "We do not know what other signals Western diplomats expect from us. We have long been ready to start a dialogue, but only if it is a mutually respectful one, without any preconditions". Some Western officials also indicate interest in looking into prospects to start de-escalating tensions with Belarus. They reiterated, however, that they had no trust in Minsk and, thus, demanded that the Belarusian government provide more goodwill gestures.

Given the unprecedented magnitude of the crisis in Belarus-West relations, both sides need to manage their expectations. Arguably, no major breakthroughs are possible as long as the fighting in Ukraine continues. Yet, it seems realistic for Minsk and interested Western capitals to at least explore de-escalation options in bilateral relations and ways of cautiously building on the initial prisoner releases in Belarus. However, even such modest prospects will quickly dissipate if, instead of increasing diplomacy, the West chooses to buy the argument that sanctions help to free prisoners.

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